

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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BARRY HALL and PHAROAH FERGUSON,

SUMMONS

Plaintiffs,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD OFFICER
DETECTIVE KEVIN WARMHOLD, Shield No. 7034,
NYPD OFFICER DETECTIVE MICHAEL GAINÉ,
Shield No. 7763, NYPD OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN, NEW YORK CITY
DEPARTMENT OF CORRECTION, (fmr.) NEW YORK
CITY DEPARTMENT OF CORRECTION
COMMISSIONER CYNTHIA BRANN, and NEW YORK
CITY DEPARTMENT OF CORRECTION OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN

Plaintiff designates Queens County
as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
October 19, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiffs
1 State Street Plaza 15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD OFFICER DETECTIVE KEVIN WARMHOLD, Shield No. 7034- 106th
Detective Squad- 103-53 101st St, Queens, NY 11417

NYPD OFFICER DETECTIVE MICHAEL GAINE, Shield No. 7763- 106th Detective
Squad- 103-53 101st St, Queens, NY 11417

NEW YORK CITY DEPARTMENT OF CORRECTION, 75-20 Astoria Blvd, Queens,
NY 11370

FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER
CYNTHIA BRANN, 75-20 Astoria Blvd, Queens, NY 11370

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X

BARRY HALL and PHAROAH FERGUSON,

INDEX NO.:

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NYPD OFFICER
DETECTIVE KEVIN WARMHOLD, Shield No. 7034,
NYPD OFFICER DETECTIVE MICHAEL GAINE,
Shield No. 7763, NYPD OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN, NEW YORK CITY
DEPARTMENT OF CORRECTION, (fmr.) NEW YORK
CITY DEPARTMENT OF CORRECTION
COMMISSIONER CYNTHIA BRANN, and NEW YORK
CITY DEPARTMENT OF CORRECTION OFFICERS
JOHN DOES NUMBERS ONE THROUGH TEN

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs BARRY HALL and PHAROAH FERGUSON, by their attorneys, Shulman & Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 13, 2018, at approximately 11:00 a.m., Plaintiff BARRY HALL, while lawfully present outside of his home, located at 103-53 101st Street, Queens, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City Police officers. Owing to the knowingly false and/or inaccurate and/or incomplete allegations of Defendants against Plaintiff HALL, he spent approximately three (3) years in pretrial detention on Rikers Island and approximately twelve (12) months on house arrest. Plaintiff HALL was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York, in addition

to Articles 1, 3, 5, 9, 11, and 12 of the New York State Constitution.

2. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 1, 2018, at approximately 11:00 a.m., Plaintiff PHAROAH FERGUSON was lawfully present outside of his home, located at the intersection of 173rd Street and 140th Street, Queens, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City Police officers. Owing to the knowingly false and/or inaccurate and/or incomplete allegations of Defendants against Plaintiff FERGUSON, he spent approximately three (3) years in pretrial detention on Rikers Island and approximately twelve (12) months on house arrest. Plaintiff FERGUSON was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York, in addition to Articles 1, 3, 5, 9, 11, and 12 of the New York State Constitution.

PARTIES

3. Plaintiff BARRY HALL is a resident of the state of New York.
4. Plaintiff PHAROAH FERGUSON is a resident of the state of New York.
5. NYPD DETECTIVE KEVIN WARMHOLD, Shield No. 7034, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. NYPD DETECTIVE KEVIN WARMHOLD, Shield No. 7034, was at all times relevant herein, assigned to the 106th Precinct.
7. NYPD DETECTIVE KEVIN WARMHOLD, Shield No. 7034, is being sued in his individual and official capacities.
8. NYPD DETECTIVE MICHAEL GAINÉ, Shield No. 7034, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. NYPD DETECTIVE MICHAEL GAINÉ, Shield No. 7034, was at all times relevant herein, assigned to the 106th Precinct.
10. NYPD DETECTIVE MICHAEL GAINÉ, Shield No. 7034, is being sued in his individual and official capacity.
11. NYPD OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN are and were at all times relevant herein officers, employees, and agents of the New York City Police

Department.

12. NYPD OFFICERS JOHN DOE NUMBERS ONE THROUGH TEN were at all times relevant herein, assigned to the 106th Precinct.
13. NYPD OFFICERS JOHN DOE NUMBERS ONE THROUGH TEN are being sued in their individual and official capacities.
14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
15. FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER CYNTHIA BRANN, are and were at all times relevant herein officers, employees, and agents of the New York City Department of Correction.
16. FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER CYNTHIA BRANN, was at all times relevant herein, assigned to the New York City Department of Correction.
17. FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER CYNTHIA BRANN is being sued in their individual and official capacities.
18. At all times relevant hereto, FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER CYNTHIA BRANN acting in the capacity of agent, servant, and employee of Defendant City, within the scope of his employment as such, and acting under color of state law. On information and belief, FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER CYNTHIA BRANN was responsible for the policy, practice, supervision, implementation, and conduct of all The New York City Department of Correction matters and was responsible for the training, supervision, and conduct of all The New York City Department of Correction personnel, including the defendants referenced herein. As Commissioner, Brann was also responsible for the care, custody, and control of all inmates housed in the Department's jails. In addition, at all relevant times, Brann was responsible for enforcing the rules of The New York City Department of Correction, and for ensuring that The New York City Department of Correction personnel obeyed the laws of the United States and of the State of New York.
19. NEW YORK CITY DEPARTMENT OF CORRECTION OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN, was and was at all times relevant herein officers, employees, and agents of the New York City Department of Correction.

20. NEW YORK CITY DEPARTMENT OF CORRECTION OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN, were at all times relevant herein, assigned to the New York City Department of Correction.
21. NEW YORK CITY DEPARTMENT OF CORRECTION OFFICERS JOHN DOES NUMBERS ONE THROUGH TEN are being sued in their individual and official capacities.
22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
23. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Department of Correction (DOC) as part of and in conjunction with its municipal function.
24. In furtherance of their causes of action brought pursuant to New York State law filed a timely Notices of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
25. In accordance with New York State law and General Municipal Law Section 50, Plaintiff BARRY HALL testified at a hearing held pursuant to General Municipal Law Section 50-H on June 1, 2022.
26. In accordance with New York State Law and General Municipal Law Section 50, Plaintiff PHAROAH FERGUSON testified at a hearing held pursuant to General Municipal Law Section 50-h on June 1, 2022.
27. More than thirty (30) days have elapsed since service of said Notices of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.
28. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
29. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

I. Plaintiff BARRY HALL

30. On February 13, 2018, at approximately 11:00 a.m., Plaintiff BARRY HALL was lawfully present outside of his home, located at 103-53 101st Street, Queens, New York, when the

Defendant NYPD officers unlawfully handcuffed, questioned, searched, and falsely arrested him without probable cause or legal justification.

31. At the above date and time, officers surreptitiously surrounded Plaintiff HALL'S home and waited from him to exit his residence. When Plaintiff HALL walked out of his home and towards his car, myriad Defendant officers descended upon him.
32. Some of the officers were dressed in NYPD uniforms. Some officers were dressed in military-style uniforms and were equipped with body armor and helmets. Some were dressed in plainclothes.
33. The officers had their firearms drawn and pointed directly at Plaintiff HALL.
34. The officers then grabbed Plaintiff HALL and shoved him onto the ground.
35. The officers then pinned Plaintiff HALL'S arms behind his back and put metal handcuffs on his wrists. The officers applied the handcuffs so tightly to Plaintiff HALL'S wrists that he experienced pain and suffered lacerations.
36. Plaintiff HALL did not resist arrest in any way, he fully complied with the officers' commands.
37. The officers then took Plaintiff HALL to the 106th NYPD Police Precinct. At the 106th precinct Plaintiff HALL was fingerprinted, photographed, searched, and interrogated by the officers.
38. The officers then put Plaintiff HALL into a holding cell.
39. During the time that officers detained Plaintiff HALL at the 106th precinct, they knowingly submitted false and/or inaccurate and/or incomplete information that they knew to be false and/or inaccurate and/or incomplete to the Queens County District Attorney's Office, in which they falsely accused Plaintiff HALL of having committed murder.
40. After hours at 106th precinct, the officers took Plaintiff HALL to Queens County Central Booking (hereinafter "Central Booking").
41. At Central Booking, Defendants illegally searched Plaintiff HALL once more, and then put him into a holding cell.
42. After hours spent in a holding cell at Central Booking, Plaintiff HALL was finally brought before a judge for arraignment.
43. At arraignment, Plaintiff HALL was charged via criminal court complaint with, *inter alia*, Murder in the Second Degree (NY PL § 125.25).
44. At arraignment, Plaintiff HALL entered a plea of not guilty to all charges.

45. Owing in large part to the false information provided to the arraignment court by the Defendants, Plaintiff HALL was ordered held without bail, and remanded to Rikers Island.
46. After arraignment, Defendants took Plaintiff HALL to Rikers Island where he was once again subjected to illegal and unduly invasive searches of his person.
47. On February 21, 2018, Plaintiff HALL'S defense counsel filed Notice of Alibi, pursuant to NY CPL § 250.20. The alibi notice included the names and contact information for two alibi witnesses. The alibi notice also provided the Defendants with information regarding exculpatory surveillance video footage that proved Plaintiff HALL was in his home, miles away from the alleged crime scene, at the time of the alleged murder.
48. Based on the surveillance video footage time stamps, and distance from the crime scene, it would have been impossible for Hall to have been physically present at the crime scene.
49. Despite being served with alibi notice, mere days after arraignment, the Defendants refused to properly and timely investigate both the alibi witnesses and the exculpatory video evidence.
50. In addition, between the date of Plaintiff's criminal court arraignment and April 3, 2018, the Defendants came into possession of exculpatory cell phone tower triangulation data that demonstrated that Plaintiff HALL was in his home, miles away from the alleged crime scene, at the time of the alleged murder.
51. Despite the Defendants being in possession of this exculpatory cell phone tower triangulation evidence, mere weeks after Plaintiff HALL'S criminal court arraignment, they refused to properly and timely investigate.
52. While the erroneous criminal case against Plaintiff HALL was being maliciously prosecuted, he remained in Defendants' custody on Rikers Island.
53. In The New York City Department of Corrections (hereinafter "DOC") custody, Plaintiff HALL was subjected to gang violence, solitary confinement, and other physical and mental mistreatment.
54. On March 7, 2020, Governor Andrew M. Cuomo issued Executive Order 202, "Declaring a Disaster Emergency in the State of New York," formally declaring a state of emergency in New York State due to the outbreak of COVID-19.
55. Investigations into DOC's COVID-19 protocols during the period of time that Plaintiff HALL was detained on Rikers Island revealed, "a complete disregard of social distance measures; severe overcrowding; an inability to keep facilities clean; a failure to distribute masks; and a denial of necessary treatment to people with underlying respiratory conditions." *Following Bombshell Report on Covid Deaths on Rikers Island, Officials Must Address the Deadly Conditions That Persist in Jails and Prisons* (March 8, 2022), <https://www.nyclu.org/en/press-releases/following-bombshell-report-covid-deaths-rikers->

island-officials-must-address-deadly.

56. While Plaintiff HALL was unlawfully held as a pretrial detainee on Rikers Island, the number of people infected with COVID-19 skyrocketed.
57. Due to Defendants' negligence, failure to provide adequate medical attention, and failure to institute proper COVID-19 prevention protocols, Plaintiff HALL was directly exposed to COVID-19 continuously for a period of months.
58. While Plaintiff HALL was unlawfully held by Defendants as a pretrial detainee on Rikers Island he was denied adequate food; medical attention; proper access to showers and other hygiene facilities; adequate exercise; and access to the phones.
59. Beginning in early 2020, due to the overwhelming number of COVID-19 cases on Rikers Island at the time, DOC suspended all in-person legal visits, thereby depriving Plaintiff HALL of meaningful access to his attorneys.
60. While Plaintiff HALL was unlawfully held by Defendants as a pretrial detainee on Rikers Island, DOC routinely failed to produce him for his many court appearances, depriving him meaningful access to the courts and legal representation.
61. During this time, DOC denied Plaintiff HALL meaningful access to a law library.
62. After approximately three (3) years in Defendants' custody on Rikers Island, Plaintiff HALL was released.
63. Instead of being released on his own recognizance, the criminal trial court placed Plaintiff HALL on house arrest, with an ankle monitor, that he had to pay for himself.
64. Plaintiff HALL was on house arrest for approximately twelve (12) months, during which he was required to remain in his home for 24 hours per day. The cost of the house arrest was \$5,000 out of pocket to Plaintiff Hall.
65. On March 23, 2022, on the day that trial was scheduled to begin, the Queens County District Attorney's office moved the Queens County Supreme Court, Criminal Term, to dismiss the indictment against Plaintiff HALL, in its entirety.
66. The Court granted the District Attorney's motion and dismissed all criminal charges against Plaintiff HALL because Plaintiff was actually innocent.
67. At no time relevant herein did Plaintiff HALL commit a crime or violate the law in any way.
68. At no time relevant herein did the Defendants have probable cause to arrest Plaintiff HALL.
69. At no time relevant herein did Defendants have reasonable suspicion to believe that Plaintiff HALL had committed a crime.

70. His unlawful detention severely affected Plaintiff HALL'S relationship with his family, friends, and his ability to get a job and provide for his family, causing severe emotional distress.
71. While Plaintiff HALL was unlawfully held as a pretrial detainee, he missed myriad important moments with his family and friends. Most importantly, Plaintiff HALL missed three (3) years of his children's lives. He missed their birthdays, first days of school, and the smaller moments that make up their daily lives. Missing so much time with his young children caused Plaintiff HALL profound psychological and emotional trauma that persists to this day.
72. Some of the police officer defendants observed the violation of Plaintiff HALL'S rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff HALL the right to due process and a fair trial.
73. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff HALL'S right to a fair trial by the individually named Defendants caused Plaintiff HALL to sustain physical, psychological, and emotional trauma.

II. Plaintiff PHAROAH FERGUSON

74. On February 1, 2018, at approximately 11:00 a.m., Plaintiff PHAROAH FERGUSON was lawfully present outside of his home, located at the intersection of 173rd Street and 140th Street, Queens, New York, when the Defendant NYPD officers unlawfully handcuffed, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.
75. At the above date and time, officers surreptitiously surrounded Plaintiff FERGUSON'S home and waited for him to exit his residence. When Plaintiff FERGUSON walked out of his home and towards his car, myriad Defendant officers descended upon him.
76. Some of the officers were dressed in NYPD uniforms. Some were dressed in military-style uniforms and were equipped with body armor and helmets. Some were dressed in plainclothes.
77. The officers had their firearms drawn and pointed directly at Plaintiff FERGUSON.
78. The officers then grabbed Plaintiff FERGUSON and shoved him onto the ground.
79. The officers then pinned Plaintiff FERGUSON'S arms behind his back and put metal handcuffs on his wrists. The officers applied the handcuffs so tightly to Plaintiff FERGUSON'S wrists that he experienced pain and suffered lacerations.

80. Plaintiff FERGUSON did not resist arrest in any way, he fully complied with the officers' commands.
81. The officers then took Plaintiff FERGUSON to the 106th NYPD Police Precinct.
82. At the 106th Precinct Plaintiff FERGUSON was fingerprinted, photographed, searched, and interrogated by the officers.
83. The officers then put Plaintiff FERGUSON into a holding cell.
84. Plaintiff FERGUSON continually told Defendants that he was home at the time of the alleged murder, and even offered video surveillance corroborating his whereabouts.
85. During the time that officers detained Plaintiff FERGUSON at the 106th precinct, they knowingly submitted false and/or inaccurate and/or incomplete information that they knew to be false and/or inaccurate and/or incomplete to the Queens County District Attorney's Office, in which they falsely accused Plaintiff FERGUSON of having committed murder.
86. After hours at 106th precinct, the officers took Plaintiff FERGUSON to Central Booking.
87. At Central Booking, Defendants illegally searched Plaintiff FERGUSON once more, and then put him into a holding cell.
88. After hours spent in a holding cell at Central Booking, Plaintiff FERGUSON was finally brought before a judge for arraignment.
89. At arraignment, Plaintiff FERGUSON was charged via criminal court complaint with, *inter alia*, Murder in the Second Degree (NY PL § 125.25).
90. At arraignment, Plaintiff FERGUSON entered a plea of not guilty to all charges.
91. Owing in large part to the false information provided to the arraignment court by the Defendants, Plaintiff FERGUSON was ordered held without bail, and remanded to Rikers Island.
92. After arraignment, Defendants took Plaintiff FERGUSON to Rikers Island where he was once again subjected to illegal and unduly invasive searches of his person.
93. Shortly after Plaintiff FERGUSON'S criminal court arraignment, Defendants came into possession of exculpatory information, specifically video evidence that proved Plaintiff FERGUSON'S innocence.
94. Despite the Defendants' being in possession of this exculpatory cell phone tower triangulation evidence mere weeks after Plaintiff FERGUSON'S criminal court arraignment, they failed to properly and timely investigate.

95. While the erroneous criminal case against Plaintiff FERGUSON was being litigated, he remained in Defendants' custody on Rikers Island.
96. In The New York City Department of Corrections (hereinafter "DOC") custody, Plaintiff FERGUSON was subjected to gang violence, solitary confinement, and other physical and mental mistreatment.
97. On March 7, 2020, Governor Andrew M. Cuomo issued Executive Order 202, "Declaring a Disaster Emergency in the State of New York," formally declaring a state of emergency in New York State due to the outbreak of COVID-19.
98. Investigations into DOC's COVID-19 protocols during the period of time that Plaintiff FERGUSON was detained on Rikers Island revealed, "a complete disregard of social distance measures; severe overcrowding; an inability to keep facilities clean; a failure to distribute masks; and a denial of necessary treatment to people with underlying respiratory conditions." Following Bombshell Report on Covid Deaths on Rikers Island, Officials Must Address the Deadly Conditions That Persist in Jails and Prisons (March 8, 2022), <https://www.nyclu.org/en/press-releases/following-bombshell-report-covid-deaths-rikers-island-officials-must-address-deadly>.
99. While Plaintiff FERGUSON was unlawfully held as a pretrial detainee on Rikers Island, the number of people infected with COVID-19 skyrocketed.
100. Due to Defendants' negligence, failure to provide adequate medical attention, and failure to institute proper COVID-19 prevention protocols, Plaintiff FERGUSON was directly exposed to COVID-19 continuously for a period of months.
101. While Plaintiff FERGUSON was unlawfully held by Defendants as a pretrial detainee on Rikers Island he was denied adequate food; medical attention; proper access to showers and other hygiene facilities; adequate exercise; and access to the phones.
102. Beginning in early 2020, due to the overwhelming number of COVID-19 cases on Rikers Island at the time, DOC suspended all in-person legal visits, thereby depriving Plaintiff FERGUSON of meaningful access to his attorneys.
103. While Plaintiff FERGUSON was unlawfully held by Defendants as a pretrial detainee on Rikers Island, DOC routinely failed to produce him for his many court appearances, depriving him meaningful access to the courts. During this time, DOC denied Plaintiff FERGUSON meaningful access to a law library.
104. After approximately three (3) years in Defendants' custody on Rikers Island, Plaintiff FERGUSON was released.
105. Instead of being released on his own recognizance, the criminal trial court placed Plaintiff FERGUSON on house arrest, with an ankle monitor, that he had to pay for himself.

106. Plaintiff FERGUSON was on house arrest for approximately twelve (12) months, during which he was required to remain in his home for 24 hours per day, at a cost of approximately \$5,000.
107. On March 23, 2022, on the day that trial was scheduled to begin, the Queens County District Attorney's office moved the Queens County Supreme Court, Criminal Term, to dismiss the indictment against Plaintiff FERGUSON, in its entirety.
108. The Court granted the District Attorney's motion and dismissed all criminal charges against Plaintiff FERGUSON.
109. At no time relevant herein did the Defendants have probable cause to arrest Plaintiff FERGUSON for any crime.
110. At no time relevant herein did Defendants have reasonable suspicion to believe that Plaintiff FERGUSON had committed a crime.
111. The unlawful incarceration severely affected Plaintiff FERGUSON'S relationship with his family, friends, and his ability to get a job and provide for his family, causing severe emotional distress.
112. While Plaintiff FERGUSON was unlawfully held as a pretrial detainee, he missed myriad important moments with his family and friends. Most importantly, Plaintiff FERGUSON missed three (3) years of his children's lives. He missed their birthdays, first days of school, and the smaller moments that make up their daily lives. Missing so much time with his young children caused Plaintiff FERGUSON profound psychological and emotional trauma that persists to this day.
113. Some of the police officer defendants observed the violation of Plaintiff FERGUSON'S rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff FERGUSON the right to due process and a fair trial.
114. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff FERGUSON'S right to a fair trial by the individually named Defendants caused Plaintiff FERGUSON to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

115. The Plaintiffs repeats, reiterates, and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.
116. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested,

and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

117. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
False Arrest and False Imprisonment

118. The Plaintiffs repeats, reiterates, and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

119. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

120. As a direct and proximate result of such acts, defendants deprived Plaintiffs of his rights under the laws of the State of New York and the United States Constitution.

121. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

122. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION
Unlawful Stop, Question, and Frisk

124. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

125. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

126. The conduct of Defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

127. As a direct and proximate result of such acts, defendants deprived Plaintiffs of his rights

under the laws of the State of New York.

128. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

129. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

130. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

131. The illegal approach, pursuit, stop and search employed by Defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

132. Defendants lacked probable cause to search Plaintiffs.

133. As a direct and proximate result of such acts, defendants deprived Plaintiffs of his rights under the laws of the State of New York.

134. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

135. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights Denial of Right to Fair Trial/Due Process

137. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

138. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

139. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

140. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.
141. In withholding/creating false evidence against Plaintiffs BARRY HALL and PHAROAH FERGUSON, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.
142. As a result of the foregoing, Plaintiffs BARRY HALL and PHAROAH FERGUSON sustained, *inter alia*, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
143. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
144. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
145. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

146. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.
147. The use of excessive force by defendants by, amongst other things, tightly handcuffing him, constituted objectively unreasonable physical seizures of Plaintiffs in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
148. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

149. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

150. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, BARRY HALL and PHAROAH FERGUSON. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
151. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.
152. As a direct and proximate result of such acts, defendants deprived Plaintiffs of thier rights under the laws of the State of New York.
153. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, and Department of Corrections, which are therefore responsible for their conduct.
154. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
155. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

156. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.
157. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, NYPD Officers and Department of Corrections Officers, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
158. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

159. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

160. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers. Defendants failed to intervene to prevent the unlawful conduct described herein.
161. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to strip search and other physical constraints.
162. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.
163. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, Department of Correction, which are therefore responsible for their conduct.
164. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
165. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION
Malicious Prosecution

166. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.
167. The acts and conduct of the Defendants constitute malicious prosecution under the laws of the State of New York and New York State common law, and the laws of the United States Constitution under Section 1983.
168. Defendants commenced and continued a criminal proceeding against the Plaintiffs.
169. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charges for which they were prosecuted.
170. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.
171. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.
172. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

173. The City of New York, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

174. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

ELEVENTH CAUSE OF ACTION

Fabrication of Evidence

175. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

176. Defendant officers misrepresented the facts of their case against the Plaintiffs by creating and/or tampering with evidence, which they then used to commence and continue a criminal proceeding against the Plaintiffs.

177. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.

178. At least one of the officer Defendants involved in this misrepresentation of facts and fabrication of evidence was indicted for perjury and official misconduct by the Queens County District Attorney on the aforementioned date, almost a decade after the plaintiff's wrongful conviction and subsequent incarceration, causing several of the cases he was involved with to be reinvestigated and their sentences overturned.

179. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

180. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

TWELFTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

182. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

183. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;

- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

184. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

185. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

186. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

187. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs **BARRY HALL and PHAROAH FERGUSON** demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorneys' fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 19, 2022

By: Cary London
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TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

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Squad- 103-53 101st St, Queens, NY 11417

NYPD OFFICER DETECTIVE MICHAEL GAINÉ, Shield No. 7763- 106th Detective
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11370

FORMER NEW YORK CITY DEPARTMENT OF CORRECTION COMMISSIONER
CYNTHIA BRANN, 75-20 Astoria Blvd, Queens, NY 11370

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein, I maintain my office.

Dated: New York, New York
October 19, 2022


CARY LONDON